

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN D EVELAND,

Petitioner

VS.

WILLIAM T BALDWIN JR,

Respondent

) Case Number: FDI-25-802148

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, HOME
TO BE LISTED FOR SALE AND THE PROCEEDS HELD IN TRUST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner John D. Eveland and Respondent William T. Baldwin Jr.
- 2) On 11/4/25, Petitioner filed a Petition for Dissolution of Domestic Partnership.
- 3) On 3/2/26, Petitioner filed a Proof of Service of Summons indicating personal service was effectuated on 1/2/26.
- 4) Respondent did not file a Response.
- 5) On 5/1/26, Petitioner filed an ex parte Request for Order seeking to compel the sale of the real property located at 877 Montecito Drive, Los Angeles, CA 94131 (the home). Petitioner asserts that he purchased the home prior to the parties becoming registered domestic partners and paid the mortgage in full until 2020 when the parties added Respondent to the title and began jointly paying the mortgage. Petitioner states he had to move out of the home due to his poor health condition, which requires he reside in a supportive care home in San Francisco. Petitioner claims that Respondent continues to reside in the home and refuses to sell it; however, funds to pay the

1 mortgage and carrying costs are depleted. Petitioner further asserts that he received notice the
2 mortgage has not been paid since November of 2025 and the home is at risk of foreclosure and
3 waste (hoarding and rodent infestation). Petitioner states both parties are of advanced age (early
4 80s) and cannot care for the home. Petitioner requests the Court order Respondent to vacate the
5 home within 30 days and immediately list the home for sale with Petitioner authorized to select
6 the relator.

7 6) On 5/1/26, the Court denied Petitioner's request for emergency relief and set the matter on
8 shortened time on 6/2/26. The Court made a finding that the ex parte Request for Order was
9 served on Respondent.

10 7) On 5/28/26, Petitioner filed a Proof of Service indicating the ex parte Request for Order was
11 served on Respondent by personal service on 5/22/26.

12 8) Respondent did not file a Responsive Declaration.

13 **B. Findings and Order**

14 1) Family Code section 2108 provides the Court's authority "to order the liquidation of community
15 or quasi-community assets to avoid unreasonable market or investment risks" upon a showing of
16 good cause; however, the Court is prohibited from doing so unless "the appropriate declaration of
17 disclosure has been served by the moving party."

18 2) The Court finds Petitioner made a showing of good cause; however, Petitioner did not file a
19 Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration
20 (form FL-141) as mandated by Family Code section 2104. Therefore, the requirement for the
21 moving party to serve the appropriate disclosures under Family Code Section 2108 has not been
22 met.

23 3) Accordingly, this hearing is **CONTINUED to 7/16/26 at 9 AM in Dept. 403.**

24 4) At least 10 days in advance of the hearing, Petitioner shall complete his preliminary declaration
25 of disclosure by:

- 26 a. Serving on Respondent all of the following: Preliminary Declaration of Disclosure (form
27 FL-140), current Income and Expense Declaration (form FL-150), completed Schedule of
28 Assets and Debts (form FL-142) or Community and Separate Property Declarations
29 (form FL-160) with appropriate attachments, all tax returns filed by the party in the two

1 years before service of the preliminary disclosures, and all other required information
2 under Family Code section 2104.

- 3 b. Filing Declaration Regarding Service of Declaration of Disclosure and Income and
4 Expense Declaration (form FL-141) with the Court.
5 5) The Court will prepare the Findings and Order After Hearing.
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